

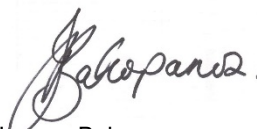
Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development



Joanna Bakopanos

A/Director

Industry Assessments

Sydney

16 December 2024

File: EF23/341

SCHEDULE 1

Application Number:

SSD-53338465

Applicant:

Equinix Hyperscale 2 (SY10) Pty Limited

Consent Authority:

Minister for Planning and Public Spaces

Site:

8 Grand Avenue, Rosehill

Lot 10 DP 1275083

Development:

The construction and operation of a data centre building with an operational capacity of 31.2 megawatts (MW)

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DEFINITIONS

Additional Information	Correspondence by the Applicant in response to the Department's request for information including the letter dated 4 November 2024
Applicant	Equinix Hyperscale 2 (Sy10) Pty Ltd, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
Carrier	Operator of a telecommunication network and/or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
Certifier	A council or an accredited certifier (including principal certifiers) authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
CEMP	Construction Environmental Management Plan
CFERP	Construction Flood Emergency Response Plan
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent
Council	City of Parramatta Council
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Department	NSW Department of Planning, Housing and Infrastructure (DPHI)
Development	The development described in Schedule 1, the EIS, Response to Submissions and Additional Information including the works and activities comprising the construction and 24/7 operation of a data centre, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for construction
EIS	The Environmental Impact Statement titled Data Centre Expansion SSD-53338465 8 Grand Avenue, Rosehill, prepared by Patch Planning dated 6 September 2023, submitted with the application for consent for the development.
ENM	Excavated Natural Material
Environment	As defined in section 1.4 of the EP&A Act
EPA	NSW Environment Protection Authority
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPL	Environment Protection Licence under the POEO Act
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
FRNSW	Fire and Rescue NSW
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the <i>Environment Protection and Biodiversity Conservation Act 1999</i> (Cth), or anything identified as a heritage item under the conditions of this consent
HPC	Housing and Productivity Contribution
Incident	An occurrence or set of circumstances that causes or threatens to cause material harm to the environment, and as a consequence of that environmental harm, may

	cause harm to the health and safety of human beings, and which may or may not be or cause a non-compliance Note: “Material harm” is defined in this consent
Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Material harm	Is harm that: a) involves actual harm to the environment that may include (but not be limited to) a leak, spill, emission other escape or deposit of a substance, and as a consequence of that environmental harm (pollution), may cause harm to the health or safety of people; or b) results in actual loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000 (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment) Note: This definition excludes “harm” that is either authorised under this consent or any other statutory approval Note: For the purposes of this definition, material harm excludes incidents captured by Work Health and Safety reporting requirements
Minister	NSW Minister for Planning and Public Spaces (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
OEMP	Operational Environmental Management Plan
OFERP	Operational Flood Emergency Response Plan
Operation	The use of a Data Centre as described in the EIS, RTS and additional information
Principal Certifier	The certifier appointed as the principal certifier for the building work under section 6.6(1) of the EP&A Act
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Registered Aboriginal Parties	Means the Aboriginal persons identified in accordance with the document entitled “ <i>Aboriginal cultural heritage consultation requirements for proponents 2010</i> ” (DECCW)
Rehabilitation	The restoration of land disturbed by the development to a good condition, to ensure it is safe, stable and non-polluting
Response to Submissions (RTS)	The Applicant’s response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the document titled Response to Submissions Report Data Centre Expansion SSD-53338465 8 Grand Avenue, Rosehill, prepared by Path Planning and dated 30 July 2024
Sensitive receivers	A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area
Site	The land defined in Schedule 1
TfNSW	Transport for New South Wales
VENM	Virgin Excavated Natural Material
Waste	Has the same meaning as the definition of the term in the Dictionary to the POEO Act
Year	A period of 12 consecutive months

SCHEDULE 2

PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS, Response to Submissions and additional information;
 - (d) in accordance with the Development Layout in Appendix 1; and
 - (e) in accordance with the management and mitigation measures in Appendix 2.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c) or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c) or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must ensure that the back-up generators installed and operated under this consent do not exceed a total installed generating capacity of 53.2 megawatts.
- A7. The Applicant must ensure:
- (a) operation of the back-up generators (including testing) does not exceed 200 hours per year; and
 - (b) no more than one (1) generator is tested at any one time (as part of the development approved under this consent).

Note: For the purposes of condition A7, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A7 rather than five hours.

- A8. This development consent does not permit the use of the back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market; or
 - (b) to support load curtailment at the site.

NOTIFICATION OF COMMENCEMENT

- A9. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed with the Planning Secretary:
- (a) construction;
 - (b) operation; and
 - (c) cessation of operations.

- A10. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary).

EVIDENCE OF CONSULTATION

- A11. Where conditions of this consent require consultation with an identified party, the Applicant must:
- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
 - (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

- A12. With the written agreement of the Planning Secretary, the Applicant may:
- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
 - (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
 - (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).
- A13. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.
- A14. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

- A15. Prior to the commencement of construction of the development, the Applicant must:
- (a) consult with the relevant owner and provider of services or public infrastructure that are likely to be affected by the development or that need to be installed as part of the development, to make suitable arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
 - (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
 - (c) submit a copy of the dilapidation report to the Planning Secretary and Council.
- A16. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:
- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
 - (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
 - (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works/ public infrastructure.

Sydney Water

- A17. Prior to the commencement of operation of the development, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994*.

Fibre-Ready Facilities

- A18. Within six months of the commencement of construction of the main data centre building, or as otherwise agreed to in writing by the Planning Secretary, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:
- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and

- (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.

A19. Prior to the issue of the Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

STRUCTURAL ADEQUACY

A20. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the BCA.

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The EP&A (Development Certification and Fire Safety) Regulation 2021 sets out the requirements for the certification of the development.

EXTERNAL WALLS AND CLADDING

A21. The external walls of all buildings including additions to existing buildings must comply with the relevant requirements of the BCA.

A22. Prior to the issue of:

- (a) any Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and

- (b) an Occupation Certificate,

the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.

A23. The Applicant must provide a copy of the documentation given to the Certifier to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

A24. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

CONTRIBUTIONS TO COUNCIL

A25. Prior to the issue of a Construction Certificate for any part of the development, a contribution under section 7.11 of the EP&A Act of \$314,528.57 (adjusted on a quarterly basis (from the date of this consent), in accordance with the formula provided in Section 2.2 of the City of Parramatta (Outside CBD) Development Contributions Plan 2021 – Amendment No.1 and Australian Bureau of Statistics - Consumer Price Index (All Groups Index) for Sydney), must be paid to Council for traffic and transport infrastructure, recreational facilities (including open space), and to fund the administration of the contributions plan.

Note: At the date of this consent, the relevant monetary contribution is approximately \$314,528.57. This contribution has been calculated in accordance with Council's contribution rates for the September 2024 quarter.

HOUSING AND PRODUCTIVITY CONTRIBUTION

A26. Prior to the issue of a Construction Certificate for any part of the development, a housing and productivity contribution (HPC) in accordance with Table 1 must be paid for the development, as adjusted in accordance with condition A27.

Table 1 Housing and Productivity Contribution Amount

Housing and productivity contribution	Amount
Housing and productivity contribution (base component)	\$234,724.80
Transport project component	\$0
Total housing and productivity contribution	\$234,724.80

A27. At the time of payment, the amount of the HPC is to be adjusted in accordance with the Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024 (HPC Order).

The HPC may be made wholly or partly as a non-monetary contribution (apart from any transport project component) if the Minister administering the EP&A Act agrees.

The HPC is not required to be made to the extent that a planning agreement excludes the application of Subdivision 4 of Division 7.1 of the EP&A Act to the development, or the HPC Order exempts the development from the contribution.

The amount of the contribution may be reduced under the HPC Order, including if payment is made before 1 July 2025.

OPERATION OF PLANT AND EQUIPMENT

A28. All plant and equipment used on site, or to monitor the performance of the development, must be:

- (a) maintained in a proper and efficient condition; and
- (b) operated in a proper and efficient manner.

WORK AS EXECUTED PLANS

A29. Prior to the issue of the Occupation Certificate for the development, work-as-executed drawings signed by a registered surveyor demonstrating that the stormwater drainage and finished ground levels have been constructed as approved, must be submitted to the Principal Certifier.

APPLICABILITY OF GUIDELINES

A30. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.

A31. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

AN1. All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

AIR QUALITY

Dust Minimisation

- B1. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.
- B2. During construction of the development, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network;
 - (d) public roads used by these trucks are kept clean; and
 - (e) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B3. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Back-up Generator System

- B4. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.

Air Quality Management Plan

- B5. Prior to the commencement of operation of the development, the Applicant must prepare an Air Quality Management Plan (AQMP) to the satisfaction of the Planning Secretary. The AQMP must form part of the OEMP required by condition C5. The AQMP must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) detail and rank all emissions from all sources of the development, including particulate emissions;
 - (c) describe a program that is capable of evaluating the performance of the operation against the criteria in the *Approved Methods for Modelling and Assessment of Air Pollutants in NSW (2022)* (The Approved Methods) (including during a power outage event) and determining compliance with key performance indicators;
 - (d) identify the control measures that will be implemented for each emission source;
 - (e) outline monitoring procedures which would be implemented during each power outage event; and
 - (f) include a Power Outage Notification Protocol (PONP) for the development that must:
 - (i) identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - (ii) identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - (iii) detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.
- B6. The Applicant must:
- (a) not commence operation until the Air Quality Management Plan required by condition B5 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Air Quality Management Plan approved by the Planning Secretary for the duration of the development.

NOISE

Hours of Work

- B7. The Applicant must comply with the hours detailed in Table 2.

Table 2 Hours of Work

Activity	Day	Time
Construction	Monday – Friday Saturday	7 am to 6 pm 8 am to 1 pm

Operation (excluding back-up generator testing)	Monday – Sunday	24 hours
Back-up generator testing	Monday – Saturday	7 am to 6 pm
	Sunday and Public Holidays	8 am to 6 pm

- B8. Works outside of the hours identified in condition B7 may be undertaken in the following circumstances:
- (a) works that are inaudible at the nearest sensitive receivers;
 - (b) works agreed to in writing by the Planning Secretary;
 - (c) for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
 - (d) where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

- B9. The development must be constructed to achieve the construction noise management levels detailed in *the Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time). All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the Construction Noise Management Plan approved under condition B10.

Construction Noise Management Plan

- B10. The Applicant must prepare a Construction Noise Management Plan for the development to the satisfaction of the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must
- (a) be prepared by a suitably qualified and experienced noise expert;
 - (b) describe procedures for achieving the noise management levels in EPA's *Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time);
 - (c) describe the measures to be implemented to manage high noise generating works such as piling, which may impact sensitive receivers;
 - (d) include strategies that have been developed with the community for managing high noise generating works;
 - (e) describe the community consultation undertaken to develop the strategies in condition B10(d); and
 - (f) include a complaints management system that would be implemented for the duration of the development.
- B11. The Applicant must:
- (a) not commence construction of the development until the Construction Noise Management Plan required by condition B10 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Construction Noise Management Plan approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

- B12. The Applicant must ensure that noise generated by operation of the development does not exceed the noise limits in Table 3.

Table 3 Noise Limits (dB(A))

Location ^a	Day	Evening and Night	Night
	L _{Aeq} (15 minute)	L _{Aeq} (15 minute)	L _{AMax}
I1	63	63	63
I2	60	59	67
I3	62	60	73
I4	67	58	73
I5	69	62	69
I6	67	55	69
I7	60	60	61

18	65	65	65
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- a. Refer to the plan in Appendix 4 for the location of receivers

Note Noise generated by the development is to be measured in accordance with the relevant monitoring performance procedures and exemptions (including certain meteorological conditions) of the NSW Noise Policy for Industry (EPA, 2017) (as may be updated or replaced from time to time)..

- B13. The Applicant must ensure the operation of plant and equipment does not generate intermittent noise at receiver locations identified in Table 3 in accordance with Fact Sheet C of the NSW Noise Policy for Industry (EPA, 2017).

Post-Commissioning Noise Verification Report

- B14. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:

- (a) be prepared to the satisfaction of the Planning Secretary by a suitably qualified acoustic consultant;
- (b) demonstrate that noise verification has been carried out by a suitably qualified and experienced acoustic consultant in accordance with:
 - (i) the Australian Standard AS 1055:2018 Acoustics – Description and measurement of environmental noise (Standards Australia, 2018); and
 - (ii) the EPA Approved Methods for the Measurement and Analysis of Environmental Noise in NSW (EPA, 2022);
- (c) include:
 - (i) an analysis of compliance with noise limits specified in condition B12;
 - (ii) an outline of management actions to be taken to address any exceedances of the limits specified in condition B12; and
 - (iii) a description of contingency measures in the event management actions are not effective in reducing noise levels to an acceptable level.

VIBRATION

Vibration Criteria

- B15. Vibration caused by construction at any residence or structure outside the site must be limited to:
- (a) for structural damage, the latest version of *DIN 4150-3 (2016-12) Vibration in Buildings – Part 3: Effects on Structures* (German Institute for Standardisation, 2016); and
 - (b) for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: a technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).

TRAFFIC AND ACCESS

Construction Traffic Management Plan

- B16. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with Council and TfNSW;
- (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction, including scheduling vehicle movements outside of peak hours;
- (d) detail heavy vehicle routes, access and parking arrangements;
- (e) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;
- (f) include a program to monitor the effectiveness of these measures; and
- (g) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.

- B17. The Applicant must:

- (a) not commence construction until the Construction Traffic Management Plan required by condition B16 is approved by the Planning Secretary; and
- (b) implement the most recent version of the Construction Traffic Management Plan approved by the Planning Secretary for the duration of construction.

Parking

B18. The Applicant must provide sufficient parking facilities on-site, including for heavy vehicles and for site personnel, to ensure that traffic associated with the development does not utilise public and residential streets or public parking facilities.

Operating Conditions

B19. The Applicant must ensure:

- (a) internal roads, driveways and parking (including grades, turn paths, sight distance requirements, aisle widths, aisle lengths and parking bay dimensions) associated with the development are constructed and maintained in accordance with the latest version of *AS 2890.1:2004 Parking facilities Off-street car parking* (Standards Australia, 2004), *AS 2890.2:2018 Parking facilities Off-street Commercial Vehicle Facilities* (Standards Australia, 2018) and *AS 2890.6.2009 Parking facilities Off-street parking for people with disabilities* (Standards Australia, 2009)
- (b) the swept path of the longest vehicle entering and exiting the site, as well as manoeuvrability through the site, is in accordance with the relevant AUSTROADS guidelines;
- (c) the development does not result in any vehicles queuing on the public road network;
- (d) heavy vehicles and bins associated with the development are not parked on local roads or footpaths in the vicinity of the site;
- (e) all vehicles are wholly contained on site before being required to stop;
- (f) all loading and unloading of materials is carried out on-site; and
- (g) the proposed turning areas in the car park are kept clear of any obstacles, including parked cars, at all times.

Green Travel Plan

B20. Prior to the commencement of operation of any part of the development, the Applicant must prepare a Green Travel Plan to encourage the use of sustainable and active transport options by operational staff. The Green Travel Plan must form part of the OEMP required by condition C5 and must:

- (a) be prepared in consultation with TfNSW;
- (b) outline facilities and measures to promote public transport usage, such as car share schemes and employee incentives; and
- (c) describe pedestrian and bicycle linkages and end of trip facilities available on-site.

B21. The Applicant must

- (a) not commence operation until the Green Travel Plan is submitted to the Planning Secretary.
- (b) implement the most recent version of the Work Place Travel Plan submitted to the Planning Secretary for the duration of the development.

SOILS, WATER QUALITY AND HYDROLOGY

Imported Soil

B22. The Applicant must:

- (a) ensure that only VENM, ENM, or other fill material approved in writing by EPA is brought onto the site;
- (b) keep accurate records of the volume and type of fill to be used; and
- (c) make these records available to the Planning Secretary upon request.

Erosion and Sediment Control

B23. Prior to the commencement of any construction for the development, the Applicant must install suitable erosion and sediment control measures on-site, in accordance with the relevant requirements of the *Managing Urban Stormwater: Soils and Construction - Volume 1: Blue Book* (Landcom, 2004) guideline and the Erosion and Sediment Control Plan included in the CEMP required by condition C2.

B24. The Applicant must maintain the erosion and sediment control measures installed on-site in accordance with condition B23 for the duration of construction of the development.

Discharge Limits

- B25. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an EPL.

Stormwater Management System

- B26. The Applicant must finalise the detailed design of the stormwater management system for the development, prior to the commencement of construction of that system. The system must:
- (a) be designed by a suitably qualified and experienced person(s);
 - (b) be designed in consultation with Council;
 - (c) be generally in accordance with the conceptual design in the RTS;
 - (d) be in accordance with applicable Australian Standards; and
 - (e) ensure that the system capacity has been designed in accordance with *Australian Rainfall and Runoff* (Engineers Australia, 2016) and *Managing Urban Stormwater: Council Handbook* (EPA, 1997) guidelines.
- B27. Prior to the commencement of operation, the Applicant must install the stormwater management system in accordance with the finalised detailed design (as required by condition B26) and ensure the system is operational.
- B28. The Applicant must maintain the stormwater management system installed on the site under condition B27 for the duration of the development.
- B29. Prior to the commencement of operation, the Applicant must prepare and implement a stormwater maintenance plan for the life of the development, consistent with Appendix C of Integrated Water Management Plan, prepared by Van Der Meer, dated 27 June 2024.

Flood Management

- B30. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Flood Emergency Response Plan (CFERP) and submit it to the Planning Secretary. The Plan must form part of the CEMP required by condition C2 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) address the provisions of the *Floodplain risk management manual* (2023) and *Support for emergency management planning* (2023); and
 - (c) include details of:
 - (i) the flood emergency responses for the construction phase of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time, flood notification, signs and depth indicators;
 - (iv) assembly points and evacuation routes;
 - (v) shelter in place protocols, including suitable locations of flood free refuge areas;
 - (vi) evacuation protocols; and
 - (vii) awareness training for employees and contractors.
- B31. The Applicant must:
- (a) not commence construction until the CFERP required by condition B30 is submitted to the Planning Secretary; and
 - (b) implement the most recent version of the CFERP submitted to the Planning Secretary for the duration of the development.
- B32. Prior to the commencement of operation of the development, the Applicant must prepare an Operational Flood Emergency Response Plan (OFERP) and submit it to the Planning Secretary. The Plan must form part of the OEMP required by condition C5 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) address the provisions of the *Floodplain risk management manual* (2023) and *Support for emergency management planning* (2023);
 - (c) nominate suitable flood free locations accessible from all tenancies for shelter in place scenarios;
 - (d) include details of:
 - (i) the flood emergency responses for the operational phase of the development;
 - (ii) predicted flood levels, including probable maximum flood;
 - (iii) shelter in place protocols for all relevant flooding events;
 - (iv) awareness training for employees and contractors;
 - (v) protocols for advising site employees and visitors to stay away from the site during flood events;

- (vi) flood warning time, flood notification, signs and depth indicators;
- (vii) evacuation protocols including assembly points and evacuation routes (where applicable); and
- (viii) communication strategies to ensure all potential tenants are aware of flood levels (including probable maximum flood);
- (e) detail protocols for periodic review and update to the plan at least once every five years as well as (but not limited to):
 - (i) when flood warning systems in the area are updated;
 - (ii) when new flood evacuation routes are made available; and
 - (iii) following a flood event that triggers the OFERP.

B33. The Applicant must:

- (a) not commence operation until the OFERP required by condition B32 is submitted to the Planning Secretary and Council; and
- (b) implement the most recent version of the OFERP submitted to the Planning Secretary for the duration of the development.

B34. All floor levels must be no lower than the 1% Annual Exceedance Probability flood plus 500 mm of freeboard.

B35. Any structures below the 1% Annual Exceedance Probability plus 500 mm of freeboard must be constructed from flood compatible building components.

B36. Prior to the commencement of operation, the Applicant must submit to the Planning Secretary, verification (including modelling and afflux mapping) that the detailed design of the development does not result in increases in 1% Annual Exceedance Probability flood depth of more than 10mm outside of the site boundaries.

ABORIGINAL HERITAGE

B37. All reasonable steps must be taken to avoid harm, modification or other impact to Aboriginal objects except as authorised by this consent.

Aboriginal Cultural Heritage Management Plan

B38. Before the commencement of construction works for the development, the Applicant must prepare an Aboriginal Cultural Heritage Management Plan (ACHMP) for the development. The plan must form part of the CEMP required by condition C2 and must:

- (a) be prepared by a suitably qualified and experienced expert in consultation with the Registered Aboriginal Parties;
- (b) be reviewed by Heritage NSW;
- (c) include an unexpected finds protocol that specifies if any item or object of Aboriginal heritage significance is identified on site:
 - (i) all work in the immediate vicinity of the suspected Aboriginal item or object must cease immediately;
 - (ii) a 10 m wide buffer area around the suspected item or object must be cordoned off; and
 - (iii) Heritage NSW must be contacted immediately; and
 - (iv) Work in the immediate vicinity of the Aboriginal item or object may only recommence in accordance with the provisions of Part 6 of the National Parks and Wildlife Act 1974.
- (d) include requirements to undertake ongoing consultation with the Registered Aboriginal Parties during the implementation of the plan;
- (e) be submitted to the satisfaction of the Planning Secretary prior to construction of any part of the development;
- (f) include provision for workers on site to receive suitable heritage inductions prior to carrying out any development on site, with records to be kept of these inductions; and
- (g) include procedures and requirements for ongoing review and revision of the plan.

B39. The Applicant must:

- (a) not commence construction until the ACHMP is approved by the Planning Secretary; and
- (b) implement the most recent version of the ACHMP approved by the Planning Secretary for the duration of the construction of the development.

Heritage Interpretation Plan

B40. The Applicant must prepare a Heritage Interpretation Plan to acknowledge the Aboriginal heritage of the site. The plan must be prepared by a suitably qualified and experienced expert and address the recommendations within the Aboriginal Cultural Heritage Assessment Report prepared by Artefact, dated July 2023.

- B41. Prior to the commencement of operation, the Applicant must implement the Heritage Interpretation Plan required by condition B40.

HAZARDS AND RISK

- B42. The Applicant must design and operate the development in accordance with:
- (a) AS 1940:2017 The storage and handling of flammable and combustible liquids (Standards Australia, 2017);
 - (b) AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles (Standards Australia, 2000);
 - (c) IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications (Standards Australia, 2023)

In the event of an inconsistency between the standards listed above, the most stringent requirement shall prevail to the extent of the inconsistency.

- B43. The quantities of dangerous goods stored and handled at the site must be below the threshold quantities listed in the Department's *Hazardous and Offensive Development Application Guidelines – Applying SEPP 33* at all times.

Fire Safety Study

- B44. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit a Fire Safety Study (FSS) for the development to FRNSW. The FSS must:
- (a) meet the operational requirements of FRNSW;
 - (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994); and
 - (c) consider the operational capability of local fire agencies and the need for the facility to achieve an adequate level of on-site fire and life safety independence.
 - (d) verify the final design of the fire safety systems complies with:
 - (i) AS 1940:2017 The storage and handling of flammable and combustible liquids (Standards Australia, 2017);
 - (ii) AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles (Standards Australia, 2000);
 - (iii) IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications (Standards Australia, 2023); and
- In the event of an inconsistency between the requirements listed from (i) to (iii) above, the requirements as agreed with FRNSW shall prevail to the extent of the inconsistency; and
- (e) report on the outcome of consultation with FRNSW regarding compliance with Loss Prevention Data Sheet 5- 32 – Data centres and related facilities (FM Global Property, 2022).

- B45. The Applicant must:
- (a) not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) until the FSS (see condition B44) has been approved by FRNSW; and
 - (b) provide a copy of the approved FSS to the Planning Secretary within seven days after it is approved by FRNSW.

Emergency Services Information Package

- B46. From the commencement of construction and for the life of the development, an Emergency Services Information Package, developed in accordance with the FRNSW *Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans*, must be stored in an emergency information cabinet directly adjacent to the main entry point to the site.

Emergency Plan

- B47. At least two months prior to the commencement of commissioning of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the Planning Secretary and FRNSW. The Emergency Plan must include consideration of the safety of all people outside of the development who may be at risk from the

development. The plan must be prepared in accordance with the Department's Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'.

Bunding

- B48. The Applicant must store all chemicals, fuels and oils used on-site in appropriately banded areas in accordance with the requirements of all relevant Australian Standards, and/or EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual* (Department of Environment and Climate Change, 2007).

WASTE MANAGEMENT

Pests, Vermin and Priority Weed Management

- B49. The Applicant must:

- (a) implement suitable measures to manage pests, vermin and declared priority weeds on the site; and
- (b) inspect the site on a regular basis to ensure that these measures are working effectively, and that pests, vermin or priority weeds are not present on site in sufficient numbers to pose an environmental hazard or cause the loss of amenity in the surrounding area.

Note: For the purposes of this condition, priority weed has the same definition of the term in the Biosecurity Act 2015.

REMEDIATION

- B50. Prior to the commencement of operation of the development, the Applicant must finalise remediation works as approved under DA/751/2019, as modified.

Unexpected Finds

- B51. Prior to the commencement of construction, the Applicant must prepare an unexpected contamination finds procedure to ensure that potentially contaminated material is appropriately managed. The procedure must form part of the of the CEMP in accordance with condition C2 and must ensure any material identified as contaminated is managed in accordance with the POEO Act and its associated regulations. Details of the final management approach and the results of any associated testing must be submitted to the Planning Secretary within six weeks of the Applicant becoming aware of the contamination find, or as otherwise agreed to by the Planning Secretary.

VISUAL AMENITY

Landscaping

- B52. Prior to the commencement of operation of the development, the Applicant must prepare a Landscape Management Plan to manage the revegetation and landscaping works on-site, to the satisfaction of the Planning Secretary. The plan must form part of an OEMP in accordance with condition C5. The plan must:

- (a) detail the species to be planted on-site;
- (b) describe the monitoring and maintenance measures to manage revegetation and landscaping works; and
- (c) be consistent with the Applicant's Management and Mitigation Measures at Appendix 2.

- B53. The Applicant must:

- (a) not commence operation until the Landscape Management Plan is approved by the Planning Secretary.
- (b) must implement the most recent version of the Landscape Management Plan approved by the Planning Secretary; and
- (c) maintain the landscaping and vegetation on the site in accordance with the approved Landscape Management Plan required by condition B52 for the life of the development.

Lighting

- B54. The Applicant must ensure the lighting associated with the development:

- (a) complies with the latest version of AS 4282-2019 - *Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
- (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

Signage and Fencing

- B55. All signage and fencing must be erected in accordance with the development plans included in the RTS.

Note: This condition does not apply to temporary construction and safety related signage and fencing.

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) a condition compliance table for that plan;
 - (b) detailed baseline data;
 - (c) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (d) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (e) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development; and
 - (ii) effectiveness of the management measures set out pursuant to paragraph (d) above;
 - (f) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria as quickly as possible;
 - (g) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (h) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (i) a protocol for periodic review of the plan.

Note: *The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans*

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) Construction Noise Management Plan (see condition B10);
 - (b) Construction Traffic Management Plan (see condition B16);
 - (c) Erosion and Sediment Control Plan;
 - (d) Community Consultation and Complaints Handling; and
 - (e) a copy of the development's Flood Emergency Response (see condition B30);
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP is approved by the Planning Secretary; and
 - (b) carry out the construction of the development in accordance with the CEMP approved by the Planning Secretary and as revised and approved by the Planning Secretary from time to time.

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:
- (a) describe the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;
 - (b) describe the procedures that would be implemented to:
 - (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;

- (ii) receive, handle, respond to, and record complaints;
- (iii) resolve any disputes that may arise;
- (iv) respond to any non-compliance;
- (v) respond to emergencies; and
- (c) include the following environmental management plans:
 - (i) Air Quality Management Plan (condition B5);
 - (ii) a copy of:
 - i. Green Travel Plan (see condition B20);
 - ii. Operational Flood Emergency Response (see condition B32); and
 - (iii) Landscape Management Plan (see condition B52).

C7. The Applicant must:

- (a) not commence operation until the OEMP is approved by the Planning Secretary; and
- (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

C8. Within three months of:

- (a) the submission of a Compliance Report under condition C14;
- (b) the submission of an incident report under condition C11;
- (c) the approval of any modification of the conditions of this consent; or
- (d) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,

the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.

C9. If necessary to either improve the environmental performance of the development, cater for a modification or comply with a direction, the strategies, plans and programs required under this consent must be revised, to the satisfaction of the Planning Secretary. Where revisions are required, the revised document must be submitted to the Planning Secretary for approval within six weeks of the review required under condition C8, or such other timing as agreed by the Planning Secretary.

Note: *This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.*

REPORTING AND AUDITING

Incident Notification, Reporting and Response

C10. The Applicant must notify the Department within 24 hours of becoming aware of an incident. The notification must be made via the NSW planning portal (Major Projects) and address details of the incident including:

- (a) date, time and location;
- (b) a brief description of what occurred and why it has been classified as an incident;
- (c) a description of what immediate steps were taken in relation to the incident; and
- (d) identifying a contact person for further communication regarding the incident.

C11. The Applicant must provide the Department with a subsequent incident report in accordance with the requirements set out in Appendix 3 (Incident Notification and Reporting Requirements).

Non-Compliance Notification

C12. Within seven days of becoming aware of any non-compliance, the Applicant must notify the Department of the non-compliance, in writing, via the NSW planning portal (Major Projects).

C13. A non-compliance notification submitted under condition C12 must identify the development (including the development application number and name), set out the condition of this consent that the development is non-compliant with, why it does not comply, the reasons for the non-compliance (if known), and what actions have been undertaken, or will be undertaken, and when, to address the non-compliance.

Note: *A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.*

Compliance Reporting

- C14. Within the first year of commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Planning Secretary reviewing the environmental performance of the development to the satisfaction of the Planning Secretary. Compliance Reports must be prepared in accordance with the Compliance Reporting Post Approval Requirements (Department 2020) and must also:
- (a) identify any trends in the monitoring data over the life of the development;
 - (b) identify any discrepancies between the predicted and actual impacts of the development, and analyse the potential cause of any significant discrepancies; and
 - (c) describe what measures will be implemented over the next year to improve the environmental performance of the development.
- C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Back-up Generator Testing

- C16. For the life of the development (or such other time as agreed to in writing by the Planning Secretary), the Applicant must maintain a log of all back-up generator tests undertaken at the site. For each test, the log must detail the following:
- (a) the date and time of the test;
 - (b) the total number of back-up generators which were tested; and
 - (c) the duration of the test. A copy of the log must be made available to the Planning Secretary upon request.
- C17. Within 30 days of the emergency electricity generators being used to power the development during a power outage event (or as otherwise agreed to in writing by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Incident Report for the development to the Planning Secretary. The report must include:
- (a) date and time of the power outage event;
 - (b) date and time of generator operation;
 - (c) identification of generators used to power the development;
 - (d) duration of each generator operation and total generator operation;
 - (e) total quantity of diesel fuel used by the back-up generators;
 - (f) total amount of electricity produced by the back-up generators;
 - (g) assessment of air quality impacts resultant from the operation of the generators; and
 - (h) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

- C18. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: For the purposes of this condition, as set out in the EP&A Act, “monitoring” is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an “environmental audit” is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.

ACCESS TO INFORMATION

- C19. At least 48 hours before the commencement of construction of the development and for the life of the development (or such other time as agreed by the Planning Secretary), the Applicant must:
- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent excluding any documents described in conditions B44 and B46;
 - (iv) the proposed staging plans for the development if the construction or operation of the development is to be staged;

- (v) a summary of the current stage and progress of the development;
 - (vi) contact details to enquire about the development or to make a complaint;
 - (vii) a complaints register, updated quarterly;
 - (viii) the Compliance Report of the development; and
 - (ix) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

APPENDIX 1 DEVELOPMENT LAYOUT PLANS

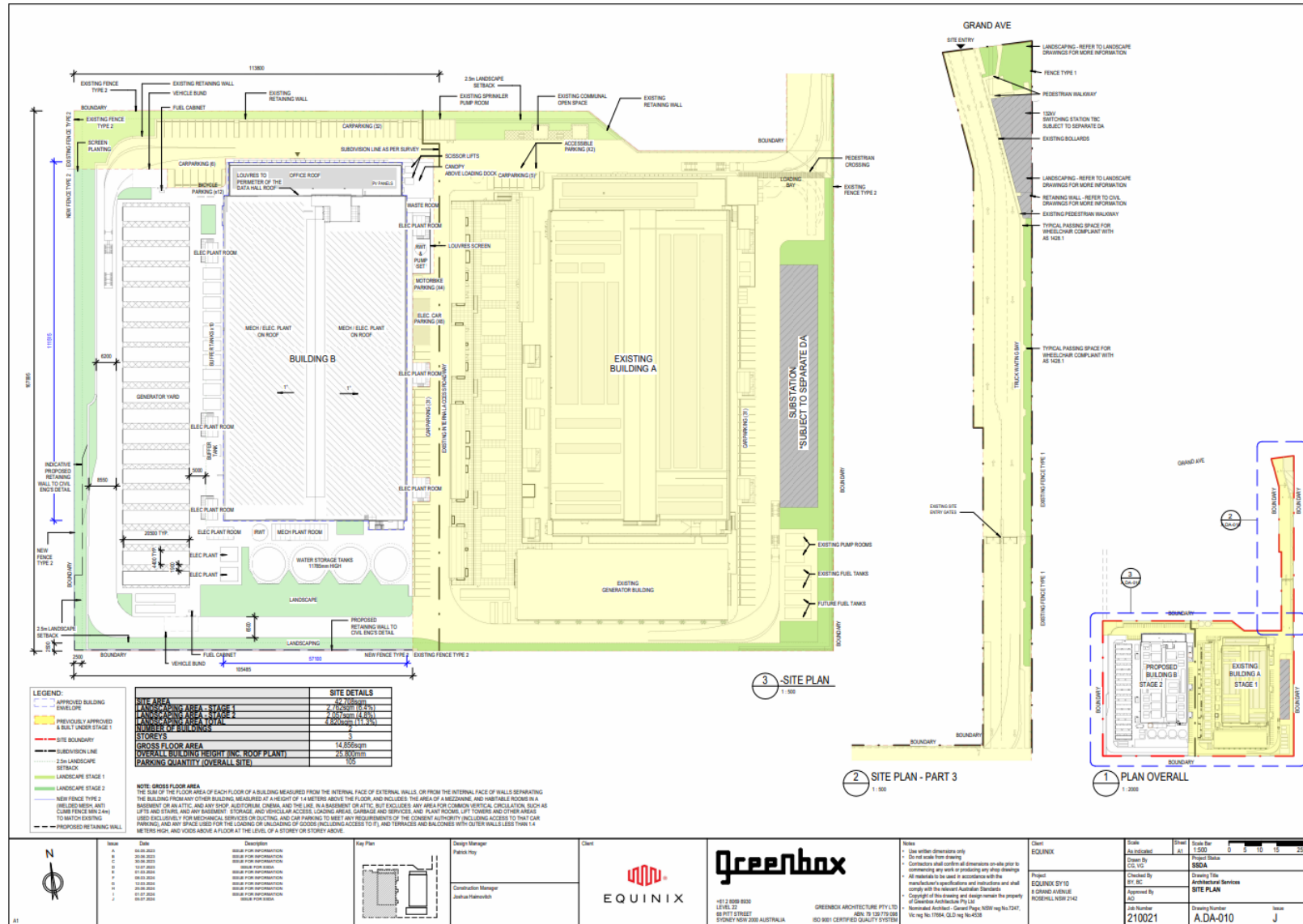


Figure 1: Site Plan

Number	Name	Revision	Date
Architectural Drawings by Greenbox			
A.DA-010	Site Plan	J	05/07/2024
A.DA-020	Site Elevations	F	05/07/2024
A.DA-030	Site Sections	G	05/07/2024
A.DA-100	Ground Floor Plan	E	05/07/2024
A.DA-110	Level 1 Floor Plan	E	05/07/2024
A.DA-120	Level 2 Floor Plan	E	05/07/2024
A.DA-140	Roof Plan	E	05/07/2024
A.DA-150	Elevations - Sheet 1	F	05/07/2024
A.DA-151	Elevations - Sheet 2	F	05/07/2024
A.DA-200	Sections	F	05/07/2024
A.DA-400	Material Finishes Schedule	E	05/07/2024
Civil Drawings by Van Der Meer			
DA-C111	Erosion and Sediment Control Plan	B	29/05/2024
DA-C201	Bulk Earthworks Plan - Sheet 1	C	29/05/2024
DA-C211	Bulk Earthworks Sections - Sheet 1	B	29/05/2024
DA-C212	Bulk Earthworks Sections - Sheet 2	B	29/05/2024
DA-C221	Retaining Wall Long. Sections - Sheet 1	B	29/05/2024
DA-C401	Drainage Layout - Sheet 1	B	29/05/2024

Item / Impact	Recommended Mitigations
Traffic, Transport and Accessibility	The following are proposed traffic management principles which should be adopted during the construction period. • Construction vehicles will follow directions given by traffic controllers, be on alert and give way to pedestrians when driving through the site. • Construction vehicles entering or leaving the site are to use arterial roads wherever possible, via the identified construction vehicle routes. • Construction workers are encouraged to use active travel, public transport or carpool to site. • Coordination with adjacent developments and authorities. • As part of the development process, the contractor is maintaining regular consultation with all relevant stakeholders, including weekly meetings and site inspections with representatives of the SY10 Data Centre and Disruption Notices for works associated with the construction site. • Drivers wishing to access the site for any reason will need to report to the traffic controllers and receive instructions and guidance to first arrive at the staging yard. Scheduling will be the main management method in ensuring multi-vehicle arrivals will not occur. No queueing or marshalling of trucks is permitted on public roads. A radio set-up will manage multiple vehicles advising when the site is clear for vehicles queued in the staging yard. • A proposed Driver Code of Conduct has been prepared for communication to Heavy Vehicle Drivers. The Code of Conduct is appended to the CTMP. Travel demand management Initiatives for the Proposal include: • Providing electric vehicle charging spaces to promote the use of low-emission vehicles. • Implementation of demand shifting measures to redistribute demand accessing the development. Rather than having typical peaks for commercial workers accessing the site (typically between 8am – 9:30am and 5pm – 6:30pm), the following measures aim to make travelling to the data centre more convenient via public transport and reduce private vehicle usage: ◦ Spreading travel demand – Staff can be given the option for flexible working hours allowing them to arrive and leave work during the shoulders of the peak e.g., start work at 10am and finish at 6:30pm or start at 7am and finish at 3:30pm; and ◦ Working from home – For staff who find it difficult to sustainably travel to the site via public transport, walking or cycling based on their origin location, reducing the need to travel may be a more sustainable option. Working from home will essentially reduce carbon emissions by eliminating the need to travel to and from work. • Provision of 12 spaces for bicycle parking along with end of trip facilities including 8 lockers (4 male, 4 female), 4 showers (2 male, 2 female) and 2 changing rooms (1 male, 1 female). • Providing public transport information within the workplace where it is visible to staff. • Implementing initiatives to encourage walking as a form of sustainable travel from other points of interests such as major public transport stops which include bus stops on James Ruse Drive and Hassall Street and the

	future Rosehill Gardens light rail stop; and Staff and visitors should be provided access to a Travel Access Guide (TAG) containing a legible map that details surrounding public transport linkages within a reasonable walking distance. TAGs can be distributed via a range of digital platforms including email, building portal or mobile phone application.
Trees and Landscaping	- Planted areas within the development are to incorporate a mix of medium canopy trees and an understory of low shrubs and grasses/groundcovers. - To facilitate water management, indigenous and native species with low water requirements are to be planted, water is to be collected on-site for irrigation, and mulching is to be provided to new planted areas.
Ecologically Sustainable Development	Energy: - The design is to achieve NABERS minimum 4.5 Star Energy rating (targeting 5 Star). - Equinix to purchase 100% renewable energy by 2030 through PPA. - Provide on-site renewable generation through PVs on roof of the FOH (approx. 300sqm). - Use of energy efficient lighting fixtures: Motion sensors and LED lighting. - Use of High Solar Reflectivity (SR) materials to reduce the impact of heat island effect similar to SY9. Metering system provided to comply with section J9D3 of NCC 2022 as follows: Lighting, small power, air conditioning plant, lifts, EV charging, PV system energy to be monitored through individual meters and connected to the building Electrical Power Monitoring System (referred as DCOS), SY10 metering system shall also comply with NABERS infrastructure rating requirement to monitor Data centre IT equipment and infrastructure services load. - Provision for generators to work on both diesel and hydrotreated vegetable oil (HVO). Water and Hydraulics: - Planting of indigenous, native and water efficient plants onsite. - Rainwater catchment area: design the rainwater harvesting system to capture maximum feasible roof area. - Size rainwater tank to minimize overflow: Due to the large volumes of water required for cooling tower operation the site will achieve minimal yearly rainwater overflow, based on past rainfall data. - Sub-metering used for the site, (domestic cold water FOH areas and non-potable cold water as well as the industrial water used for cooling towers) to monitor consumption of water on the site. - Provide provision for connection to recycled water scheme to provide water supply to the cooling towers, with back up supply provided from the authority's water main. - The main building will be drained by a high-level symphonic system into two rainwater tanks, on opposite sides of the site, to allow for catchment of the whole roof area. - Use WELS rated water efficient appliances in all cases. - Fire hydrant testing water collection to rainwater tank– up to 100% collection rate. Refrigerant use reduction: - Provision for evaporative free cooling (rather than mechanical cooling) for central cooling plant serving IT load, subject to ambient conditions. - Avoid CFC based refrigerants. - Space and structural provisions to facilitate future installation of HFO chillers. Waste minimization: - Storage and collection of recyclables. - Construction and demolition waste management planning.

	Active transportation / Local pollution reduction: Bicycle facilities and end of trip facilities to meet or exceed PDCP 2011 requirements (1 Bicycle space per 200sqm of floor space).
Air Quality	Construction: - A dust and air quality management plan shall be prepared and implemented as part of the proposal's CEMP that addresses: - Potential sources of air pollution (such as dust, vehicles and equipment) during construction. - Air quality management objectives consistent with any relevant published authority guidelines, such as the Air Quality Guidance Note – Construction Sites. - Mitigation and suppression measures to be implemented, such as water-spraying or covering exposed surfaces, provision of vehicle clean down areas, covering of loads, street cleaning, use of dust screens, maintenance of plant in accordance with manufacturer's instructions. - Methods to manage works during strong winds or other adverse weather conditions. - A progressive rehabilitation strategy for exposed surfaces. - When the air quality, suppression and management measures need to be applied, who is responsible, and how effectiveness will be assessed. - Community notification and complaint handling procedures, as required. - The following management measures should be included as part of the proposal's CEMP to minimise emissions to air from construction vehicles and site machinery: - Implement a high standard of engine maintenance to minimise vehicle emissions. - Complete pre-start vehicle checklists to make sure construction vehicles are in good working order. Operation: - Selection of generators with low emissions (in particular NOx) generator equipment. - Operation of standby generators during testing and maintenance should be minimised as far as practicable. In the event of a loss of mains power, all practical measures should be taken to reduce the duration of the outage to ensure that standby generators operate for the least amount of time possible.
Noise and Vibration	Construction: - Preparation of a Construction Noise and Vibration Management Plan (CNVMP). For all construction works, the contractor would be expected to prepare a detailed CNVMP. This plan should include but not be limited to the following: Roles and responsibilities; Noise sensitive receiver locations; Areas of potential impact; Mitigation strategy; Monitoring methodology; and Community engagement strategy. - Implementation of practices to reduce construction noise impacts will be required. - Carry out consultation with the community and surrounding building owners/occupants during construction including, but not limited to; advance notification of planned activities and expected disruption/effects, construction noise complaints handling procedures.

	• The following noise mitigation work practices are recommended to be adopted at all times on site: ◦ Regularly train workers and contractors (such as at toolbox talks) to use equipment in ways to minimise noise. ◦ Site managers to periodically check the site and nearby residences for noise problems so that solutions can be quickly applied. ◦ Avoid the use of radios or stereos outdoors. ◦ Avoid the overuse of public address systems. ◦ Avoid shouting and minimise talking loudly and slamming vehicle doors. ◦ Turn off all plant and equipment when not in use. • Implementation of the recommended minimum working distances for vibration intensive plant. With regards to vibration impacts during construction, these will be managed by the Contractor and will depend on the type, size, number and location of equipment used. Should equipment be located within the minimum working distance, mitigations measures should be implemented such as reselection of low vibration generating equipment and/or vibration monitoring. Should vibration monitoring be conducted, the criteria to be achieved at the location of monitoring would be the criteria in the NVIA. Operation: • Select equipment with sound power no more than the one listed in the NVIA. • Cooling tower: Selection of low noise cooling tower fans (See NVIA for noise levels). Setback of cooling tower fan speed during low ambient conditions at night-time. • Tx rooms (eWall, meWall Critical, meWall Essential, rBlock): Include sound absorbing material in transformer rooms to reduce reverberation time. • Substation: Include sound absorbing material to the substation walls. • Generators: Contained within an acoustic enclosure (see NVIA for maximum noise levels). • Load banks: Contained within an acoustic enclosure (see NVIA for maximum noise levels). • PPR/PCR: Contained within an acoustic enclosure with the following transmission loss. • UPS SF (eWall, meWall Critical, rBlock): Include lined duct Include attenuator. Battery Room EF (eWall, rBlock, meWall Critical) and STS SF (eWall): Include lined duct
Ground and Water Conditions; and Contamination and Remediation	• To allow for construction of building slabs and pavements it is understood that the site is required to be raised to a RL of about 7m AHD. This would involve the placement of about 1m to 1.5m of engineered fill. • Excavations to allow for the installation of services are anticipated to be similar to that of Stage 1 (SY9), where excavations of up to 3m may be required. • Update the RAP to take into account the results of the Human Health Risk Assessment (HHRA) and the Stage 2 (SY10) development and documents the remediation strategy for the site. • Appropriate management of existing site soils during construction. In this regard, any movement of existing site soils should be from east to west so as to avoid potentially moving contaminated soils to areas less impacted (e.g., under the main building) and thereby altering the risk profile of the contaminants in soil that are to be retained on-site (to be instructed as part of the RAP);

	• Consideration be given to the groundwater disposal approach during construction works. Given the higher contaminant concentrations, treatment / disposal costs are anticipated to be higher compared to those for Stage 1 (SY9). Therefore, attention should be given during design (e.g., services, civil, structural) to minimising the need to undertake works within the existing fill and particularly at or below the water table. In addition, confirmation of treatment requirements with the relevant utility provider or waste facility should be undertaken to inform project planning; and • Development of an Acid Sulfate Soil Management Plan (ASSMP) if disturbance of greater than 1,000 tonnes of natural soils is to occur. If required, this is to be undertaken prior to commencing construction, although would be preferably undertaken following further design development when the volume of natural soils to be disturbed and civil design is better informed (e.g., location and depth of service trench excavations, etc.). • Construction of a capping layer to facilitate the retention of the existing fill (where required) and mitigate the risks arising from asbestos contamination associated with this fill. • Creation and implementation of Soil Vapour Intrusion Ventilation and Contingency Systems. • Installation of Low Permeable Plugs in the service trenches to reduce the risk of service trenches forming preferential soil vapour migration pathways onto Stage 1 (SY9); and • Sealing of ground level building slabs and service pits to allow the slabs to act as a barrier system to vapour intrusion.
Water Management	The existing stormwater system on SY9 has the capacity to allow for additional flow from SY10 development. Two stub lines have been provided on SY9 stormwater drainage for the SY10 stormwater drainage connections. The SY10 stormwater drainage connections will connect to these stub lines. • The proposed stormwater management system for the development includes: • A pit and pipe network to collect minor storm runoff from area. • 2 x 10kL rainwater tank and stormwater treatment system. • Overland flow paths to carry flows from major storm events through the site in a safe manner. All stormwater pipe sizes within the site have been designed up to 1% AEP. For storm events beyond 1% AEP, suitable overland flow paths have been provided through the site in a safe manner.
Flooding Risk	• Raise the existing ground levels on the site to around RL 7.57m AHD
Hazards and Risks	The following recommendations are made regarding the management of dangerous goods on the site: • Ensure an outer warning placard is prominently displayed at workplace entrances where emergency services may enter in accordance with Regulation 349. In addition, the placard must be clearly legible, separate from other signs and otherwise compliant with Schedule 13. • Placards must be prominently displayed on or near the diesel storage tanks in accordance with Regulation 350. In addition, the placard must be clearly legible, separate from other signs and otherwise compliant with Schedule 13. • A manifest of all Schedule 11 chemicals must be prepared in accordance with Regulation 347 and Schedule 12 of the WHS Regulation. • The SafeWork NSW must be notified of diesel storage exceeding manifest quantities in accordance with Regulation 348 of the WHS Regulation. • An emergency plan must be prepared for the Site and provided to the

	NSW Fire and Rescue as per the requirements of Regulation 361 and Division 4 of Part 3.2 of the WHS Regulation.
Waste Management	Construction: - The CDWMP suggests operational mitigation measures be implemented, with recommendations relating to: - Training/Site Inductions. - Materials Selection and Ordering. - Waste Avoidance Opportunities. - Site Procedures. - General Requirements. - Waste and Recycling Receptacles. - Safety. - Signage. - Space and Siting Requirements; and - Servicing and Transport. - The frequency of waste removal from site will be determined by the volume of materials deposited into the dedicated skip bins, which will be monitored on a daily basis by the Construction Site Manager to ensure they do not overflow. If skip bins are reaching capacity, removal and replacement should be organised for within 24 hours. - All waste collection for construction works will be conducted between approved hours as per Council requirements (typically between 7am and 7pm Monday to Friday, and between 7am and 1pm on Saturdays). All waste generated on site will be transported to an approved and appropriately licensed resource recovery facility and/or landfill site. Operation: - Provide suitable quantities of waste bins including: general waste, plastic recycling and cardboard/paper recycling. - Encourage staff to suitably separate waste streams. - Building Management is to have responsibility for overseeing waste management. The relevant staff will work closely with the waste service provider regarding the schedule for collection.
Aboriginal Cultural Heritage	- Following the Unexpected finds policy below, consultation with Aboriginal parties should continue for the remainder of the project. In accordance with The Aboriginal Cultural Heritage consultation requirements for proponents 2010 (DECCW 2010a) contact with registered parties should be maintained with contact being made no less than once every six months. - An unexpected finds policy would be implemented in the event of any unexpected finds of Aboriginal sites, objects, or archaeological deposits being identified during construction. - An unexpected archaeological finds policy would involve the following actions: - Stop work within the affected area, protect the potential archaeological find, and inform environment staff or supervisor. - Contact a suitably qualified archaeologist to assess the potential archaeological find; and - If Aboriginal archaeological material is identified, works in the area should cease, and NSW Heritage should be informed. Further archaeological mitigation may be required prior to works recommencing. - If human remains are found: - Immediately cease all work at the particular location.

	○ Notify site manager and project archaeologist. ○ Notify NSW Police. ○ Notify Heritage NSW on the Environment Line 131555 as soon as practicable and provide details of the remains and their locations; and ○ Notify the Deerubbin LALC.
Environmental Heritage	The following management measures are considered to be appropriate should any unexpected impacts occur: • Unexpected finds protocol – If unexpected finds of historical nature are discovered during any work, work within 5 m of the find must cease and the following steps taken: ○ An archaeologist will be contacted to assess the find and determine if it is clearly a relic or has moderate to high potential to be a relic (this may require additional research). ○ If the find is determined to be a relic, a s146 (of the heritage act) is to be forwarded to the heritage council who will be consulted on the appropriate management measure; and ○ If the find is assessed and is not a relic, work inside the area that was made a no-go area can re- commence. • Human remains protocol – In the event that known or suspected human remains (generally in skeletal form) are encountered during the activity, the following procedure will be followed immediately upon discovery: ○ All work in the immediate vicinity will cease and the find will be immediately reported to the work supervisor who will advise the Environment Manager or other nominated senior staff member. ○ The Environment Manager or other nominated senior staff member will promptly notify the police (as required for all human remains discoveries). ○ The Environment Manager or other nominated senior staff member will contact Heritage NSW for advice on identification of the human remains. ○ If it is determined that the human remains are Aboriginal ancestral remains, the Local Aboriginal Land Council will be contacted, and consultative arrangements will be made to discuss ongoing care of the remains; and ○ If it is determined that the human remains are not Aboriginal ancestral remains, the coroner will be contacted by the police and further investigation will be conducted to determine if the remains represent a historical grave or if police involvement is required.
Social Impact	• The safety and security measures currently implemented for SY9 should be extended to SY10 to ensure the ongoing security of the facility. • During the procurement process, opportunities to provide training for new jobs and associated new skills for the local community should be considered. • Development and implementation of an engagement + communications plan that outlines ongoing engagement with key stakeholders including neighbouring businesses and residents regularly throughout the construction period to inform them of construction timelines, expectations and standards that will be met. • Proponent to notify neighbouring and potentially affected businesses about construction activities that may have additional impact on day-to-day activities, at least five business days prior to the commencement of activities. Establishment of a complaints register prior to construction, which is monitored and maintained during the construction phase of the project and made available

	via the project website outlining the complaint and how it was responded to.
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WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. All incident notifications and reports must be submitted via the NSW planning portal (Major Projects).
2. The Applicant must provide notification as required under these requirements, even if the Applicant fails to give the notification required under condition C10 or, having given such notification, subsequently forms the view that an incident has not occurred.
3. Within **7 days** (or as otherwise agreed by the Planning Secretary) of the Applicant making the immediate incident notification (in accordance with condition C10), the Applicant is required to submit a subsequent incident report that:
 - (a) identifies how the incident was detected;
 - (b) identifies when the Applicant became aware of the incident;
 - (c) identifies any actual or potential non-compliance with conditions of consent;
 - (d) identifies further action(s) that will be taken in relation to the incident;
 - (e) a summary of the incident;
 - (f) outcomes of an incident investigation, including identification of the cause of the incident;
 - (g) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence, including the period for implementing any corrective and/or preventative actions; and
 - (h) details of any communication with other stakeholders regarding the incident.
4. The Applicant must submit any further reports as directed by the Planning Secretary.

INCIDENT REPORT REQUIREMENTS

5. If requested by the Planning Secretary, within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
 6. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.
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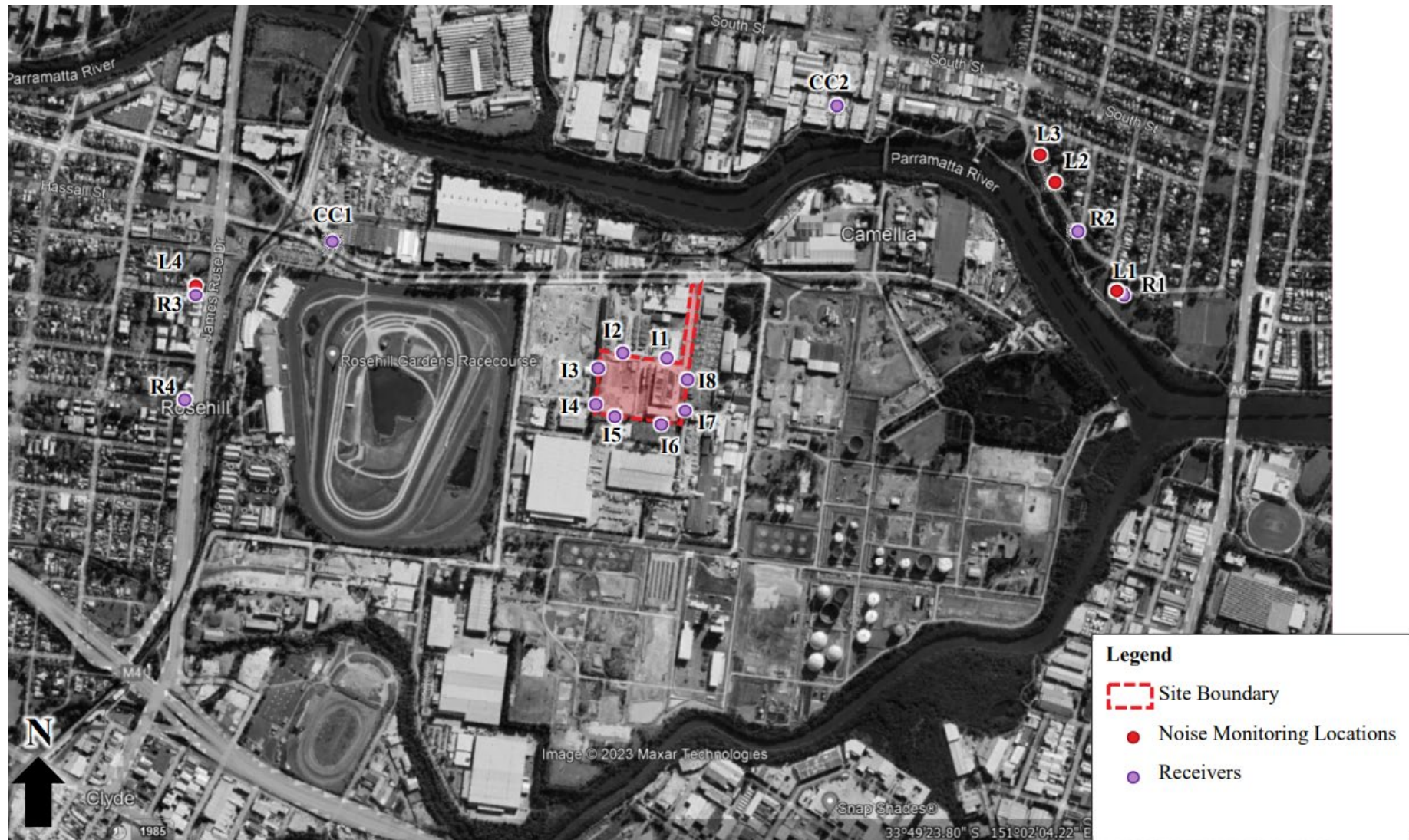


Figure 2 Location of Receivers